Notification
Health and Family Welfare Department
Sachivalaya, Gandhinagar.
Dated the, 13th March, 2018.

Gujarat Professional Medical Educational Colleges or Institutions (Regulation of Admission and Fixation of Fees) Act, 2007.

No.: GP-5/MCG/1017/SFS-15/J, In exercise of the powers conferred by sub-section (1) of section 20 read with section 4 of the Gujarat Professional Medical Educational Colleges or Institutions (Regulation of Admission and Fixation of Fees) Act, 2007 (Guj.3 of 2008) and in supersession of all the rule made in this behalf, the Government of Gujarat, hereby makes the following rules to regulate admission to the first year of the Professional Post-graduate Medical Educational Courses, namely:-

1. **Short Title.-** These rules may be called the Gujarat Professional Post-Graduate Medical Educational Courses (Regulation of Admission) Rules, 2018.

2. **Definitions.** – (1) In these rules, unless the context otherwise requires,-

(a) "Act" means the Gujarat Professional Medical Educational Colleges or Institutions (Regulation of Admission and Fixation of Fees) Act, 2007 (Guj. 3 of 2008);

(b) "Admission" means admission of candidates to the first year of Post-graduate Medical Courses in the Professional Post-Graduate Medical Educational Courses:-

(c) "Admission Committee" means Admission Committee defined under clause (a) of section 2 of the Act;

(d) "B.D.S." means Bachelor of Dental Surgery;

(e) "Commencement of Admission Programme" means the start of the process of allotment of seats to students by the Admission Committee of the Government.

(f) "Counselling" means the Counselling for all the post-graduate professional medical courses (Diploma/M.D./M.S./M.D.S.) in all Medical Educational Institutions in the State established by the State Government University or Trust, Society, a Company/Minority Institutions/Corporations within the territory of the Gujarat State conducted by the Admission Committee of the Government. Such common Counselling shall be under the overall superintendence, direction and control of the State Government.

(g) "Graduate Examination" means the Bachelor of Medicine and Bachelor of Surgery (MBBS) Examination and Bachelor of Dental Surgery (BDS) passed from a University established under any law.

(h) "M.B.B.S. means Bachelor of Medicine and Bachelor of Surgery;

(i) "NEET-PG" means National Eligibility cum Entrance Test for Post-graduate Medical Courses conducted by the designated authority.

(j) "Professional Post-Graduate Medical Educational Courses" shall include the following Post Graduate Courses, namely:-

(i) Doctor of Medicine (M.D.)

(ii) Master of Surgery (M.S.)

(iii) Diploma Courses

(iv) Master of Dental Surgery (MDS)

(k) "University" means a university or private university established under any law of the Government of Gujarat, situated in State of Gujarat and imparting professional post-graduate medical educational courses leading to the award of a degree or diploma approved or recognized by competent statutory authority.

(2) Words and expressions used in these rules but not defined shall have the same meanings as assigned to them in the Act.

3. Seats Available for Admissions.-

(1) For the purpose of admission to the first year of the Professional Post-Graduate Medical Educational Courses, available seats shall include-

A. Government Seats,-

(i) All the sanctioned seats of the Professional Post-graduate Medical Courses in the Government Colleges or Institutions of the State excluding fifty per cent. seats for All India Quota.

(ii) All the sanctioned seats of the Professional Post-graduate Medical Courses in the grant-in-aid Colleges or Institutions excluding fifty per cent. seats for All India Quota, and

(iii) Seventy five per cent. of the total sanctioned seats of the Professional Post-graduate Medical Courses in the unaided Colleges or Institutions including university.

B. Management Seats,-

(i) Twenty-five per cent. seats of the total sanctioned seats of the Professional Post-graduate Medical Courses in the unaided Colleges or Institutions or university of the State including fifteen per cent. Non-Resident Indian seats:

Provided that where any Management seat remains vacant, such seat shall be filled in as the available Government seats.

(ii) Before commencement of admission process, if any unaided College or Institution or university requests to fill up the Management Seats by the Admission Committee, such Management Seats shall also be considered as available government seats for giving admissions.

C. Non-Resident Indian Seats,-

Fifteen per cent. seats of the total sanctioned seats of the Professional Post-graduate Medical Courses in the unaided Colleges or Institutions or university of the State:

Provided that where any Non-Resident Indian seat remains vacant, such seat shall be filled in as the management seat.

(2) The intimation received, in respect of sanction of seats, by the Admission Committee three days prior to the commencement of the counselling programme, shall be considered as available seats.

4. Eligibility for Admissions.-

1. A candidate shall be an Indian Citizen:

   Provided that a candidate who desires admission on Non-Resident Indian seats shall be a Non-Resident Indian, or a child or ward of the Non-Resident Indian and completed his MBBS/BDS or equivalent course from medical institution with in or out side India and qualify in NEET-PG as per the criteria laid down by the competent authority.

2. The candidate must have completed the recognized MBBS or BDS course from University established under any law of Government of Gujarat and situated in State of Gujarat and completed compulsory rotating internship on or before 31st March of academic year of admission;

3. A candidate shall have to appear in NEET-PG Entrance Examination conducted for the year for which admission are being held in respective year for admission to Post-graduate Medical Courses and qualify in NEET-PG as per criteria laid down by the competent authority;

4. A candidate who has secured admission under these rules in any year shall not be eligible for further admission to any course until the period within which he might have completed the course in which he has secured admission.

5. Reservation of Seats.-

(A) For Government Seats,-

(1) Fifty per cent. (50%) of available seats for admissions in each Government Medical and Dental College shall be reserved for the candidates of All India Quota who are allotted for admission by the Director General of Health Services, Government of India, New Delhi.

(2) After deduction of the seats referred to in sub-rule (1), the remaining available seats in Government Colleges, shall be distributed as 25% Institutional Preference Seats and 75% All Gujarat Students Quota Seats and in Government Seats of SFI Colleges also 25% Institutional Preference Seats and 75% All Gujarat Students Quota Seats. The following reservation shall apply to both the Institutional Preference and All Gujarat Quota Seats and the seats reserved only for the candidate who are origin of Gujarat and falling under the following categories, namely:-

(a)	Scheduled Castes	:	7 %
(b)	Scheduled Tribes	:	15 %
(c)	Socially and Educationally Backward Classes	:	27 %

For Allocation of seats (SC/ST/SEBC/OPEN and PH), under different categories, a roster system as notified by the State Government shall be followed. The roster register shall be maintained at State level for all the courses and categories and used for allocation of seats as per roster register.

Explanation - The reservation of the seats shall be for the candidates belonging to the Scheduled Castes, Scheduled Tribes, Socially and Educationally Backward Classes recognized as such in the State of Gujarat and not for those who have migrated from other States.

(3) A candidate seeking admission on reserved seat shall be required to produce a Certificate of Caste from which he originates:

Provided that the candidate belonging to Socially and Educationally Backward Class shall be required to produce a certificate to the effect of non-inclusion in Creamy Layer in addition to the caste certificate.

(4) No caste certificate shall be valid unless it is duly stamped, signed and issued by the authority empowered in this regard by the Government of Gujarat.

(5) No certificate regarding non-inclusion in Creamy Layer shall be valid, unless it is duly stamped, signed and issued by the authority empowered by the Government of Gujarat. Such certificate should have been issued on or after the 1st April, 2016 as per Social Justice and Empowerment Department Resolution No. SSP/122015/455246/A, dated 26/4/2016.

(6) If a candidate fails to submit the certificates as required under sub-rule (2) within the stipulated time, his candidature shall be considered for admission under unreserved category.

(7) If a candidate of reserved category gets admission on unreserved seat in order of merits, he may be given admission on the unreserved seat according to his preference.

(8) The admission of a candidate of a reserved category on a reserved seat shall be valid subject to the verification of caste certificate by the authority empowered in this regard by the State Government. In case the caste certificate is found invalid on verification, he shall not have right to claim his admission on reserved seat and if he has already been granted admission, such admission shall be cancelled.

(9) After granting admission to all the candidates of reserved categories who are in merit list on reserved seats, remaining vacant seats of the reserved category shall be transferred to the unreserved category seats.

(B) For Management Seats,-

No candidate shall be admitted in the Professional Post-graduate Medical Educational Courses unless he fulfills the eligibility criteria including the qualifying in NEET-PG as may be notified from time to time.

(C) For Non-Resident Indian seats,-

No candidate shall be admitted to the Professional Post-graduate Medical Educational Courses unless he fulfills the eligibility criteria including the qualifying in NEET-PG as may be notified from time to time.

6. Reservation for In-service candidate of Government of Gujarat.-

As per the policy of the Medical Council of India, New Delhi, the 50% seats for in-service candidates who are sponsored by the Government of Gujarat shall be reserved in Government Medical Colleges in each category only in the Diploma Courses.

7. Reservation for Physically Disabled person.-

Three percent of the available seats in each category in Government Colleges and Grant-in-aid colleges or institutions shall be reserved, for loco-motor disabled candidates of the respective category provided that a candidate having ''loco-motor disability of lower limbs between 50% to 70% (upper limbs being normal)'' shall be eligible to apply for admission in accordance with the guidelines/regulations of the

Medical Council of India provided the candidate shall require to produce the certificate obtained in the proforma prescribed in the application form. The certificate shall be obtained from the Medical Board constituted for this purpose by the State Government. The Certificate shall contain extent of disability and suitability of such candidate for undertaking the course. If any seat remains vacant, the second preference shall be given to a candidate having loco-motor disability of lower limbs between 40% to less than 50%.

8. Conduct of Admissions.-

(i) State Government shall constitute an Admission Committee of the Government to conduct, supervise and control the entire process of admission of students to government seats, management seats and NRI seats to the Professional Post-graduate Medical Educational Courses. Admission to all medical seats shall be made by centralized single window state counselling by the admission committee to make it a one composite process. The private institutes may send their representative at the place of Counselling of medical seats.

(ii) Admission Committee shall, by advertisement in the prominent newspapers widely circulated in the State, and by such other means, as the Committee may consider necessary, publish the date of issue of admission forms, PIN, centers for submission of documents, last date for submission and such other information as may be necessary in this regards. The committee shall decide schedule of admission process, advertisement, preparation and display of merit list, details of fees to be paid, and all aspects pertinent to admission.

(iii) There shall be only two rounds of common counselling, each conducted by the Admission Committee. Manual counselling for allotment of students shall be conducted by the Admission Committee to ascertain the number of seats that still remain vacant after the two rounds of online counselling, A list of students in order of merit shall be prepared by the Admission Committee, so that in case of any stray vacancy arising in any college, the said seat shall be filled up from the merit list.

(iv) All the Seats shall be filled on the basis of merit list prepared by the Admission Committee.

9. Application for admission.-

(i) The Admission committee shall, by advertisement in the prominent newspapers widely circulated in the State, by web-site and by such other means, as it may consider necessary, publish the date of registration, last date of submission of Registration Form, courses offered and such other information as may be necessary in this regard.

(ii) For the purpose of registration, candidate shall be required to make payment of such sum towards the Registration fee, PIN from designated centers as determined by the Admission committee.

(iii) A candidate seeking admission, shall apply on-line on the website of admission committee for the registration of his candidature within the time limit, specified by the Admission committee.

(iv) If candidate has made more than one registration, the registration made at the later stage shall be taken into consideration for admission purpose and the other registrations shall be treated as cancelled.

(v) A candidate; who has registered himself online once and wants to correct/change his data, can do so at

the office of admission committee and justify the need for change with valid documentary evidence.

(vi) The receipt/confirmation can be obtained for the application received online. The applicant shall be given the registration number and date of his application in the receipt and the same shall be used as reference in all future correspondence and also used in the merit list.

10. Documents to be submitted with the registration form.-

(1) The candidate shall submit the self-attested copies of the following documents with the Application form, namely:-

(i) All year MBBS/BDS Mark sheet with all Attempt Certificate;

(ii) NEET-PG Mark-sheet of the current year;

(iii) Eight Month Internship Completion Certificate;

(iv) School Leaving Certificate or Transfer Certificate;

(v) For In service candidate, study leave/resignation or NOC of Government of Gujarat;

(vi) Certificate of registration with Gujarat Medical / Dental Council or Medical Council of India / Dental Council of India;

(vii) Caste certificate for a candidate belonging to Scheduled Caste (SC), Scheduled Tribes (ST) and Socially and Educationally Backward Classes (SEBC), issued by the authority empowered by the Government in this behalf (for SC, ST AND SEBC candidates);

(viii) Non-Creamy Layer (NCL) certificate of the family, as per the prevailing policy of the Government, issued by the authority empowered by the Government in this behalf (for SEBC candidates);

(ix) Certificate of Physical Disability, issued and duly signed by the medical board constituted or medical officer authorized for the purpose; (for physically disabled candidates);

(x) Certificate regarding Medical Fitness; and

(xi) The documentary evidence of NRI status for candidate who desires to take admission on NRI seats.

(xii) The necessary proof regarding his minority status and his willingness in writing to take admission in the concerned minority college / institution for candidate belonging to the minority community.

(2) The candidate shall have to produce original documents as referred to in above sub-rule for verification, at the time of counselling, before admission committee.

(3) The Admission Committee may retain any original documents, which it considers necessary until the admission process is completed, the said documents shall be handed over by the Admission Committee to the college or institution, where the candidate has got admission, after completion of admission process. Such college or institution shall return the original documents to the candidate after completion of administrative procedure (e.g. enrollment etc.).

11. Preparation of Merit List for admission.-

The merit list of the candidates, who have applied for admission, in the prescribed form, within the prescribed time limit and who are found eligible for admission under these rules shall be prepared in the following manner, namely:-

(1) The merit list shall be prepared on the basis of All India Overall Rank of the candidate, who found eligible in the NEET-PG of the current academic year.

(2) Merit-list of In-service and Physically handicapped category will be prepared separately.

(3) Merit list of reserved category candidates shall be prepared separately.

(4) A separate list of minority students seeking admission in the respective minority institution in order of merit shall be prepared by the Admission Committee. The minority status of the candidate shall be checked / verified by the Competent Authority of the college. The minority quota seats, if any, in institution run by minorities will be filled up by minority students only.

12. Admission Procedure;

(1) Admission shall be given online in the following manner:

(i) The admission committee shall prepare merit lists of the eligible candidates who have applied under rule 9 and rule 11.

(ii) The merit lists shall be displayed on the web-site of the Admission Committee and by such other means, as the committee may consider convenient.

(iii) The Admission Committee shall publish the schedule of online counselling programme on its website, by advertisement in the prominent newspapers widely circulated in the State, and by such other means, as it may consider necessary.

(iv) The candidate shall be required to indicate his order of choices of courses and colleges or institutions, online. Allotment of seats shall be made on the basis of merit, category of the candidate and availability of seats. The allotment of seats shall be published on the web-site of the committee. The candidates are required to obtain the print out of the information letter and bank fee receipt copies from the web-site.

(v) The candidate shall be required to pay such fee as determined by the Fee Regulatory Committee. The admission allotted to the candidate shall be confirmed on payment of tuition fees. In case, the candidate fails to pay the tuition fees within the prescribed time limit, the admission offered to him shall be treated as cancelled. Such candidate shall not be eligible to get admission in the same course in the same institute in the successive rounds of counselling.

(vi) The candidate belonging to reserved category may be allowed to get admission on unreserved seat as per his merit number in the unreserved category. The admission shall be granted to such candidate in unreserved category, only if he is eligible to get admission, in the higher order of preference of courses than that in the reserved category

(vii) Candidate seeking admission to the Professional Post-graduate Medical Educational Courses shall be required to produce a Certificate of physical fitness to undergo such course in the prescribed form obtained from a registered medical practitioner along with the undertaking. The candidate shall submit the certificate to the Dean/Principal of the respective College or institution, at the time of joining where he has been offered admission. The admission of a candidate shall be confirmed subject to the production of certificate of his physical fitness.

(viii) The Admission Committee shall decide to allot seats as per online process as far as possible.

However, it may decide to do the same by an offline process wherever it is expedient to do so.

In case, where considerable number of seats fall vacant, and it appears to the Admission Committee to fill the vacant seats, it may conduct the admission process for readjustment (reshuffling). The candidate can reshuffle seats/choice options during process of readjustment (reshuffling). In such readjustment (reshuffling) of seats, the candidate who opts to participate in reshuffling process, shall be considered for such admission. The candidate may either give option for upgradation of choices already given or submit new choices. The candidates shall not be offered admission on the seats available to him in previous allotment process. If the candidate gets admission on the basis of upgradation or new choice, then his earlier admission shall be treated as cancelled.

In case of contingency situation as it may arise, the committee may decide such mode of admission as it may deem fit.

13. No Admission on Vacant Seats after Specific Date.-

Admission shall be granted in any Professional Post-graduate medical educational colleges or institutions on or before the date specified by concerned council for the concerned admission year. No admission shall be granted on the vacant seats after the said date.

14. Fee.- The fee for Government, Management and NRI seats shall be fixed by the Fee Regulatory Committee, constituted under section 9 of the Act, specify all components leaving no scope of incomplete information and harassment of students at the time of joining the courses. The fee structure of the colleges as determined by the Fee Regulatory Committee shall be provided at the time of notifying counselling by the Admission Committee. Fee notified by it should include all component being charged from the students, so that instances of exorbitant fee charged by the Private Colleges are removed. The consent of the students regarding his willingness to take admission in the Private Medical Colleges and pay the fees obtained by the Admission Committee.

(A) For Government seats.-

(1) A candidate who gets admission shall, at the time of admission, pay such fee as may be determined by the Fee Regulatory Committee, constituted under section 9 of the Act, as the case may be.

(2) In case the candidate who having paid the fees after getting admission gets his admission cancelled, and that the seat vacated by him is filled by another candidate, then such candidate shall be refunded such fees paid by him, after the completion of admission process.

(3) In case the candidate who having paid the fees after getting admission and gets his admission changed in another course or College or Institution in the readjustment (reshuffling) process, the difference of fees, if any, shall be payable by the candidate at the time getting admission in the readjustment (reshuffling), or as the case may be, shall be refunded to him after the completion of admission process.

(B) For management seats.-

(1) A candidate who gets admission shall, at the time of admission, pay such fees as may be determined by Fee Regulatory Committee, constituted under section 9 of the Act.

(2) In case the candidate who having paid the fees after getting admission gets his/her admission cancelled, and that the seat vacated by him is filled by another candidate, then such candidate shall be refunded such fees paid by him, after the completion of admission process.

(3) In case the candidate who having paid the fees after getting admission and gets his admission changed in another course or College or Institution in the readjustment (reshuffling) process, the difference of fees, if any, shall be payable by the candidate at the time getting admission in the readjustment (reshuffling), or as the case may be, shall be refunded to him after the completion of admission process.

(C) For NRI seats.-

(1) A candidate who gets admission shall, at the time of admission, pay such fees as decided by the Institutes under intimation to the Fee regulatory committee, constituted under section 9 of the Act.

(2) In case the candidate who having paid the fees after getting admission gets his admission cancelled, provided that the seat vacated by him is filled by another candidate, shall be paid back the fees paid by him after the completion of admission process.

(3) In case the candidate who having paid the fees after getting admission and gets his admission changed in another course and/or College or Institution in the readjustment (reshuffling) process. The difference of fees, if any, shall be payable by the candidate at the time getting admission in the readjustment (reshuffling), or as the case may be, shall be refunded to him after the completion of admission process.

15. Cancellation of Admission and Refund of Fee.-

(i) In case of cancellation of admission or transfer of candidates by the Admission Committee, due to administrative reasons, the College or Institution in which the candidate was granted admission shall refund the amount of fee collected by it, to such candidate.

(ii) In case of cancellation of admission due to failure of candidate to get himself registered within the specified time limit, such fees collected from such candidate shall be refunded after completion of the admission process or after completion of such period as may be determined by the Admission Committee.

(iii) (a) In case of a candidate withdrawing his candidature before completion of admission process, for any reason whatsoever, he may request in writing to the Admission Committee for such withdrawal. In such case, the fee collected, if any, by the Admission Committee shall be refunded to such candidate;

(b) In case of a candidate withdrawing his candidature after completion of admission process, for any reason whatsoever, he may request in writing to the college or institution in which he is granted admission, for refund of fee paid by him. In such case the fee may be refunded, by such college or institution.

16. Vacant Seats.-

After the completion of the admission process and exhaustion of merit list of the eligible candidates as per admission rules, if government seats and management seats remain vacant or vacancy arise due to any circumstances, such vacant seats shall be filled up from candidates who were applied to the Admission Committee and qualify as per NEET PG criteria but not included in the merit list of the committee because of not fulfilling the other criteria of Admission Rules. After completion of that process, if any seats are still remain vacant, such vacant seats shall be displayed on the official website

and on the notice board of the office of the Admission Committee and the same shall be intimated to the colleges or institutions wherein the seats are vacant and the institution shall filled up the seats as per the criteria laid down by the Government of India, Medical Council of India, New Delhi, Dental Council of India, New Delhi.

17. **Cancellation of admission on production of false documents.-** During verification of documents, if the Admission Committee finds any certificate or testimony or information submitted by any candidate, incorrect or false, the candidature of such candidate shall be cancelled for that year and candidate shall be disqualified for admission for the period of next two years.

18. **Penalty.-** In case any admission is given or fee is collected in breach of any of the provisions of the Act, these rules or any directions issued by the Government, the Admission Committee, or as the case may be, the Fee Regulatory Committee, by any person, shall be liable for penalty as provided in the Act.

19. **Forward the list of Admission to MCI / DGHS.-** After completion of the admission process, the final list of all admitted students to colleges and institutions shall be forwarded to the Medical Council of India and the Director General of Health Services (DGHS), Government of India in hard copy and soft copy under intimation to the Health and Family Welfare Department, Government of Gujarat. The list of admitted student shall be uploaded on MCI portal and the hard copy shall be submitted to the MCI and DGHS by all the Colleges and Institutions.

20. **Interpretation.-** If any difficulty or question arises in implementation or interpretation of the provisions of these rules, the State Government may issue such directions as it may deem fit and the decision of the State Government shall be final and binding to all concerned.

By order and in the name of the Governor of Gujarat,

(V.G.Vanzara)
Joint Secretary to Government.

Copy to:

(1) The P.S. to the Hon'ble Deputy Chief Minister (Health), Swarnim Sankul-1, Sachivalaya, Gandhinagar.
(2) The P.S. to the Hon'ble Minister of State (Health), Swarnim Sankul-2, Sachivalaya, Gandhinagar.
(3) The Secretary, the Medical Council of India, New Delhi.
(4) The Vice Chancellors, All the Universities, State of Gujarat.
(5) The Commissioner, (Health, M.S. and M.E), 5-Dr. Jivraj Mehta Bhavan, Gandhinagar.
(6) The Chief Executive Officer, the Gujarat Medical Education and Research Society, Gandhinagar.
(7) The Additional Director (Medical Education), 4-Dr. Jivraj Mehta Bhavan, Gandhinagar.
(8) The Chairman (Admission Committee), 5-Dr. Jivraj Mehta Bhavan, Gandhinagar.
(9) The Member Secretary, Admission Committee, GMERS Medical College, Sector-12, Gandhinagar.
(10) The Manager, Government Press, Gandhinagar with a request to publish it in Extra Ordinary Government Gazette and send 50 copies to this department.
(11) The select file – 2018.